

Nafees Ahamad Qureshi v. Uttar Pradesh Power Corporation Limited and others

High Court of Judicature at Allahabad · Division Bench · 18 May 2022 · WRIT - C No. - 9070 of 2022 · **Writ dismissed; refusal of new connection upheld under paras 4.1 and 4.3(f).**

HEADNOTE

Writ for certiorari against the Sub-Divisional Officer's order dated 7 February 2022, and for a mandamus to release an electricity connection, dismissed. The Division Bench found no illegality in that order in view of the second proviso to para 4.1 of Chapter IV read with para 4.3(f) of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Nafees Ahamad Qureshi approached the Allahabad High Court against Uttar Pradesh Power Corporation Limited and four others. He sought certiorari to quash the order dated 7 February 2022 of the Sub-Divisional Officer, respondent no. 3, and a mandamus directing that officer to give an electricity connection at his house in Mohalla Asalatpura Fourth, District Moradabad. The Division Bench heard counsel for the petitioner, the Standing Counsel for the State, and counsel for respondent nos. 2 and 3, and perused the impugned order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3(f)

Refusal of a new connection sustained under para 4.3(f) read with the second proviso to para 4.1

HOLDING

The Sub-Divisional Officer's order dated 7 February 2022 discloses no illegality in view of the second proviso to para 4.1 of Chapter IV read with para 4.3(f) of the U.P. Electricity Supply Code, 2005. A writ to quash that order and to command release of an electricity connection at the petitioner's house was dismissed. ¶ 1

FLAG The Court cites the second proviso to para 4.1. The catalogued 4.1 premises-dues bar is the fourth proviso. The number is left as stated.

PRINCIPLE TAGS

no-new-connection-while-predecessor-dues-outstanding-clause-4.3f The Division Bench dismissed the writ for a new connection, holding that the Sub-Divisional Officer's order of 7 February 2022 disclosed no illegality in view of para 4.3(f) read with the second proviso to para 4.1 of the U.P. Electricity Supply Code, 2005. ¶ 1